

Keshari Nandan Rai v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 24 July 2024 · 2024:AHC:118256-DB · Writ-C No. 23541 of 2024 · **Writ declined; relegated to s.127 appeal against s.126 assessment.**

HEADNOTE

A writ challenging a final assessment under s.126 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005 is not examined on merits where the statutory appeal under s.127 is available and undisputed. The consumer is relegated to that remedy and the petition is disposed of.

FACTUAL SUMMARY

Keshari Nandan Rai petitioned the Allahabad High Court against a final assessment passed by the assessing officer (respondent no. 2) under Section 126 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005. Respondents were U.P. Power Corporation Ltd. and that officer. At the hearing, counsel for the electricity department submitted that an appeal under Section 127 of the Act was available. Counsel for the petitioner did not dispute that alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ vs s.127 appeal against s.126 assessment

HOLDING

A writ petition challenging a final assessment under s.126 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005 will not be examined on merits where the statutory appeal under s.127 is available and is not disputed; the petitioner is relegated to that alternative remedy. ¶ 2-3

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

A writ challenging a final assessment under s.126 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005 is not examined on merits where the statutory appeal under s.127 is available and undisputed. The consumer is relegated to that remedy and the petition is disposed of. ¶ 2-3

s126-procedural-strictness-notice-and-hearing

A writ challenging a final assessment under s.126 of the Electricity Act, 2003 read with the Electricity Supply Code, 2005 is not examined on merits where the statutory appeal under s.127 is available and undisputed. The consumer is relegated to that remedy and the petition is disposed of. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE S.126 FINAL ASSESSMENT

The Court declined to examine the challenge and relegated the petitioner to the s.127 appeal. ¶ 3